
2:00 PM

Line 2

24-CIV-06621 KRYSTA BEAM VS AJ TUTORING INC.

KRYSTA BEAM
AJ TUTORING INC.

SEUNG YANG
JOSUE R. APARICIO

Plaintiff's Motion for an Order Approving Settlement of Claims Brought Pursuant to the Private Attorneys General Act of 2004

TENTATIVE RULING:

The parties are to APPEAR (Zoom allowed, Courtroom L) for the hearing on Plaintiff Krysta Beam's ("Plaintiff") Motion for Approval of PAGA Settlement.

According to the motion, it is estimated that there are approximately 506 aggrieved employees who worked 15,500 pay periods. The proposed settlement amount is \$400,000. The settlement will provide a payment of \$145,434.49 to the California Labor and Workforce Development Agency (i.e., 75% of the \$223,745.37 Net Settlement Amount). The remaining \$78,310.88 shall be distributed amongst the aggrieved employees.

In ruling on PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 66 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]); *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 ["'The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.'"]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

Plaintiff's counsel The Sentinel Firm, APC requests fees of \$133,333.33 but failed to provide sufficient information for the Court to perform a lodestar cross-check.

"Courts often cross-check fee awards using both methods: i.e., a lodestar approach as compared to a percentage of the common fund approach. [*In re Consumer Privacy Cases* (2009) 175 CA4th 545, 557, 96 CR3d 127, 136; *Laffitte v. Robert Half Int'l Inc.* (2016) 1 C5th 480, 504, 205 CR3d 555, 574—lodestar cross-check provides a mechanism for bringing objective measure of the work performed into the calculation of reasonable attorney fee; *In re Apple Inc. Device Performance Litig.* (9th Cir. 2022) 50 F4th 769, 784—although cross-check is discretionary, federal courts are encouraged to cross-check fee awards using both methods, particularly when using percentage-of-recovery method]. In cross-checking, courts are not required to scrutinize

hours as closely as in a traditional lodestar calculation, but may use ‘counsel declarations summarizing overall time spent, rather than demanding and scrutinizing daily time sheets in which the work performed was broken down by individual task.’ [*Laffitte v. Robert Half Int'l Inc.*, *supra*, 1 C5th at 505, 205 CR3d at 574].” (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter, June 2026 Update), at ¶ 14:145.2a)

Tiffany Hyun of the Sentinel Firm states that her firm billed 142.6 hours of work and used a blended rate of \$800/hour to calculate a lodestar of \$114,080. (Hyun Dec., ¶ 35.) Ms. Hyun states that seven different attorneys worked on this matter but only provides typical hourly rate information for four of the attorneys. (Id. at ¶ 32.) Counsel also provides a task and time summary but does not provide estimates of how many hours each attorney worked. The Court requests this information in order to determine the reasonableness of the requested blended rate.

Ms. Hyun estimates that she will spend another 5 hours on this matter, resulting in an additional \$3,000 billed and a total lodestar of \$117,080. (Hyun Dec., ¶ 36.) Contrary to what Plaintiff’s motion states, this is less than the requested attorneys’ fees, therefore Plaintiff’s counsel must request a lodestar multiplier and should provide information justifying the multiplier. Alternatively, if Plaintiff submits on this tentative, then the Court will award attorney’s fees of \$117,080.

Weil & Brown states that “[o]nce the court has fixed the lodestar, it may increase or decrease that amount by applying a positive or negative ‘multiplier’ to take into account a variety of other factors, including:

- the quality of the representation;
- the novelty and complexity of the issues;
- the results obtained; and
- the contingent risk presented. [*PLCM Group, Inc. v. Drexler* (2000) 22 C4th 1084, 1096, 95 CR2d 198, 206-207; *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 CA4th 819, 833, 112 CR2d 284, 293; *Laffitte v. Robert Half Int'l Inc.* (2016) 1 C5th 480, 489, 205 CR3d 555, 561]

(Weil & Brown, *supra*, ¶ 14:145.1.)

Plaintiff’s requested costs of \$27,171.30 include \$17,000 spent on a mediator. The Court observes that this appears to be the entire mediator’s fee, and notes that the mediator’s fee is typically split between Plaintiff’s counsel and Defense counsel. At the hearing, parties to address the total cost of the Mediator as the Court is inclined to only award half of the mediation cost.

The Court otherwise finds that the settlement amount is fair, reasonable and adequate in view of PAGA’s purposes based on the relative strengths and weaknesses of Plaintiff’s claims, Defendant’s defenses, and the risks inherent to litigation as described by Plaintiff’s counsel Ms. Hyun. (Hyun Dec., ¶¶ 15-27.) The Court also approves the proposed notice.

The parties participated in a full-day mediation session with Steven J. Rottman, Esq. on October 21, 2025. Ms. Hyun provides a declaration describing the firm’s experience and qualifications to

serve as Class Counsel. (Hyun Dec., ¶ 32.) The Court finds that Plaintiff's counsel is adequately qualified.

Plaintiff has provided notice to the Labor Workforce Development Agency (LWDA) of the settlement as required by Labor Code section 2699, subdivision (s)(2)). (Hyun Dec., ¶ 3, Ex. 2.)

The Court finds Phoenix Class Action Administration Solutions ("Phoenix") is an experienced third-party claims administrator (Lawrence Dec., ¶¶ 5-11) and approves its retention. The Court finds a reimbursement of \$5,750 to Phoenix reasonable and necessary.

The Court awards Plaintiff with a service award of \$7,500.00. The Court finds that this is reasonable based on Plaintiff's description of her contributions to the case, the fact that Plaintiff did not participate in formal discovery, and the potential average individual award for each aggrieved employee.

Plaintiff's counsel to prepare an Order after hearing that is consistent with any modifications discussed at the hearing on the questions raised above.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
